UNITED METHODIST HOMES

# United Methodist Homes
# Skilled Nursing Facility
# Policy and Procedure

SUBJECT: GRIEVANCES

REGULATION:

OBRA: F565, 585, 600, 602-603

NEW YORK STATE: §415.3, 415.5

PENNSYLVANIA: §201.29

POLICY STATEMENT:

It is the policy of United Methodist Homes to respect the resident's right to voice grievances to the facility (or other agency or entity that hears grievances) without discrimination or reprisal and/or fear thereof and shall ensure the prompt resolution of all grievances regarding the residents' rights.

DEFINITIONS:

"Grievance": A complaint expressing dissatisfaction. Examples include concerns regarding:

a. care and treatment which has been furnished;
b. care and/or treatment which has not been furnished;
c. the behavior of staff and of other residents; and
d. other complaints regarding the resident's facility stay.

"Grievance Official": A facility-designated individual who is responsible for:

a. overseeing the grievance process, including receiving and tracking grievances through to their conclusions;
b. leading any necessary investigations by the facility;
c. maintaining the confidentiality of all information associated with grievances;
d. issuing written grievance decisions to the resident; and
e. coordinating with state and federal agencies as necessary in light of specific allegations.

"Grievance Official contact information"- Information which includes:

a. his or her name;
b. business address (mailing and email); and
c. business phone number.

"Prompt efforts to resolve": Timely efforts undertaken by the facility when addressing a grievance including facility acknowledgment of complaint/grievance and active work toward resolution of that complaint/grievance.

"Voice grievances": The ability of a resident to express a grievance through a formal, written grievance process and may also include a resident's verbalized complaint to facility staff.

"Written grievance decision": A document detailing critical elements of the intake, investigation, and resolution process for each grievance received. This document shall include:

a. the date the grievance was received:
b. a summary statement of the resident's grievance;
c. the steps taken to investigate the grievance;
d. a summary of the pertinent findings or conclusions regarding the resident's concerns(s);
e. a statement as to whether the grievance was confirmed or not confirmed;
f. any corrective action taken or to be taken by the facility as a result of the grievance; and
g. the date the written decision was issued.

PROCEDURE:

1. Identify a facility Grievance Official.
RESPONSIBILITY: Administrator

2. Ensure staff and volunteers are aware of the resident's right to present grievances and recommendations and the facility protocol related to maintaining this right.
RESPONSIBILITY: Administrator, Grievance Official, or Designee

3. Upon admission, provide the resident with information and contact information, orally and in writing, regarding the filing of grievances or complaints concerning any suspected violation of state or federal nursing facility regulations, including but not limited to resident abuse, neglect, exploitation, misappropriation of resident property in the facility, non-compliance with the advance directives requirements and requests for information regarding returning to the community.
[Note: If the resident is sight-impaired or hearing-impaired or otherwise unable to comprehend English or printed matter, ensure the information is conveyed in a format and a language that the resident understands.]
RESPONSIBILITY: Administrator, Admissions, Social Worker or Designee

4. Notify the resident individually or through postings in prominent locations throughout the facility of:

a. the right to file grievances orally or in writing;
b. the right to file grievances anonymously;
c. the contact information of the grievance official with whom a grievance can be filed;
a. a reasonable expected time frame for completing the review of the grievance;
b. the right to obtain a written decision regarding his or her grievance; and
c. the contact information of independent entities with whom grievances may be filed, that is, the pertinent State agency, Quality Improvement Organization, State Survey Agency and State Long-Term Care Ombudsman program or protection and advocacy system.

[Note: The postings listed above and information contained therein shall be considered part of this policy.]
RESPONSIBILITY: Administrator, Grievance Official, or Designee

5. Support each resident's right to voice grievances (e.g., those about treatment, care, management of funds, lost clothing, or violation of rights). If grievances are received, assist the resident, or the resident's representative, in reporting the grievance in accordance with facility protocol.
RESPONSIBILITY: All Staff

6. Upon receipt of a grievance, gather necessary statements, obtain/document pertinent facts related to the concern, and make prompt efforts to resolve the grievance.
RESPONSIBILITY: Grievance Official or Designee

7. In the event of an alleged violation of resident's rights, take immediate action as necessary to prevent further potential violations while the allegation is being investigated.
RESPONSIBILITY: Administrator, Grievance Official, or Designee

8. Immediately report all alleged violations involving neglect, abuse, including injuries of unknown source, and/or misappropriation of resident property, by anyone furnishing services on behalf of the provider, to the administrator, and as required by Federal and State law.
RESPONSIBILITY: Grievance Official, or Designee

9. If the alleged violation of the residents' rights is confirmed by the facility or if an outside entity having jurisdiction, such as the State Survey Agency, Quality Improvement Organization, or local law enforcement agency confirms a violation for any of these residents' rights within its area of responsibility, take appropriate corrective action in accordance with State law.
RESPONSIBILITY: Administrator, Grievance Official, or Designee

10. Maintain necessary confidentiality of all information associated with grievances (e.g., the identity of the resident for those grievances submitted anonymously, issuing written grievance decisions to the resident).
RESPONSIBILITY: Grievance Official or Designee

11. When a resident or family group presents grievances and/or recommendations concerning proposed policy and operational decisions affecting resident care and life in the facility:

a. listen to the views;
b. take action upon said grievances including:
    i. giving serious consideration to the group's recommendations; and
    ii. attempting to accommodate those recommendations, to the extent practicable, in developing and changing facility policies affecting resident care and life in the facility;
c. be able to demonstrate facility response and rationale for such response; and
d. communicate the decision(s) to the resident and/or family group.

[Note: Acting upon these issues does not mean that the facility will accede to all group recommendations or every resident request.]
RESPONSIBILITY: Grievance Official or Designee

12. Keep the resident, resident representative, or group representative appropriately apprised of progress toward grievance resolution as able.
RESPONSIBILITY: Grievance Official or Designee

13. Take corrective action(s) identified as necessary during and as a result of the grievance review.
RESPONSIBILITY: Administrator, Grievance Official or Designee

14. Complete a written grievance decision.
RESPONSIBILITY: Grievance Official or Designee

15. Communicate information related to the grievance resolution to the resident, resident representative, or group representative as able.
RESPONSIBILITY: Grievance Official or Designee

16. Maintain evidence demonstrating the result of all grievances for a period of no less than 3 years from the issuance of the grievance decision.
RESPONSIBILITY: Grievance Official or Designee

17. Periodically review the grievance and recommendation procedures to ensure the system functions effectively and remains in compliance with all pertinent regulations.
RESPONSIBILITY: Administrator, Grievance Official, or Designee

18. Upon request, provide a copy of the grievance policy to the resident.
RESPONSIBILITY: Administrator, Grievance Official, or Designee

POLICY AND PROCDURE: GRIEVANCES

DATE: 11-2016

APPROVED BY:

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1/11/17 — Date

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11·18·16 — Date

REVIEWED/REVISED:

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